

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.: 450355/2017
Date Purchased: 02/08/2017

-----X
KEVIN CAMPBELL,

Plaintiff,

-against-

**AMENDED
VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, DETECTIVE SID CAESAR
Shield #2062/ Tax Reg. #932396, P.O. JOHN DOE and P.O.
JANE ROE,

Defendants.
-----X

Plaintiff, by his attorney, **GARY N. RAWLINS**, as and for his Verified Complaint, respectfully alleges, upon information and belief that:

1. The Plaintiff, **KEVIN CAMPBELL**, at all times herein mentioned was and still is a resident of the County of New York and the State of New York.
2. At all times herein mentioned Defendants **THE CITY OF NEW YORK ("NYC")**, **DETECTIVE SID CAESAR Shield #2062/ Tax Reg. #932396** and others presently unknown to Plaintiff (**P.O JOHN DOE and P.O. JANE ROE**) were and still are residents of the County of New York and the State of New York.
3. At all times herein mentioned Defendant **THE CITY OF NEW YORK ("NYC")** was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
4. Prior to the commencement of this action, a notice of claim in writing was served on behalf of Plaintiff **KEVIN CAMPBELL** upon NYC in accordance with Section 50-e of the General Municipal Law.

5. That notice of claim was served on June 4, 2015.

6. Within ninety days of (90) of March 31, 2015 a notice of claim in writing was served on behalf of Plaintiff **KEVIN CAMPBELL** upon **NYC**, in accordance with Section 50-e of the General Municipal Law.

7. Prior to the commencement of this action, notice of the intention of Plaintiff **KEVIN CAMPBELL** to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by the New York City Charter to adjust such claims, was served on behalf of Plaintiff upon **NYC**.

8. Although more than thirty (30) days have elapsed since service of such notice of claim, Defendants neglected and have refused to pay said claim or adjust same.

9. A hearing pursuant to General Municipal Law 50-h was held for Mr. Campbell's attorney-in-fact Tasheba Campbell on May 12, 2017. She was at the scene when the incident occurred and witnessed everything.

10. This action was commenced within one (1) year and ninety (90) days from March 31, 2015.

11. At all relevant times, Defendants were members of the **NEW YORK POLICE DEPARTMENT**, and were employees of Defendant **CITY**, and were acting for, upon and in the course of and in the furtherance of the business of their employers and within the scope of their employment.

12. The individual Defendants were acting pursuant to the authority conferred upon them by Defendant police department and Defendant municipality.

13. At all times herein mentioned, Defendants **NYC** and **DETECTIVE SID CAESAR Shield #2062/ Tax Reg. #932396, P.O JOHN DOE and P.O. JANE ROE** stood in such a

relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.

14. Defendants **NYC** are vicariously liable for the acts of Defendants **DETECTIVE SID CAESAR Shield #2062/ Tax Reg. #932396, P.O JOHN DOE and P.O. JANE ROE.**

15. By reason of the foregoing, Plaintiff **KEVIN CAMPBELL** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR THE FIRST CAUSE OF ACTION FOR FALSE ARREST AS AGAINST
ALL DEFENDANTS**

16. Plaintiff **KEVIN CAMPBELL** repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

17. Plaintiff **KEVIN CAMPBELL** sues all Defendants in their individual capacities.

18. On March 31, 2015, Plaintiff **KEVIN CAMPBELL** was wrongfully, unlawfully and unjustifiably arrested, detained and deprived of his liberty against his will, and was imprisoned by defendants, their officers, agents, servants, employees, agencies and/or departments and/or at the instigation of those departments.

19. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant.

20. At all relevant times, defendants acted forcibly and used excessive force in apprehending, arresting and imprisoning Plaintiff **KEVIN CAMPBELL.**

21. On or about March 31, 2015, at approximately 128th between Lenox Avenue and 7th Avenue while walking, Defendant **DETECTIVE SID CAESAR Shield #2062/ Tax Reg. #932396** drove his black unmarked car into Plaintiff's body. Plaintiff suffered from 2 broken bones in his forearm and a dislocated elbow. When Plaintiff told **DETECTIVE SID CAESAR Shield #2062/ Tax Reg. #932396** his arm was broken, **P.O. JANE ROE** hit him with her radio and knocked unconscious. Both hands were cuffed behind his back and then he was brought to the 25th precinct. Plaintiff waited for the ambulance for 3 hours before being brought to the hospital where he spent 3-4 hours. He was then brought downtown where he waited to see a judge. Plaintiff was in police custody for a total of about 72 hours. All charges were dismissed on December 15, 2016.

22. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant or probable cause.

23. At all relevant times, Defendants assaulted Plaintiff and used unnecessary and excessive force on Plaintiff **KEVIN CAMPBELL**.

24. Prior to March 31, 2015, the City of New York developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Mr. Campbell's rights. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen's complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by the City of New York. It was the policy and/or custom of the City of New York to inadequately supervise and train its police officers, managers and employees including the respondent officers and ADA'S thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrest as possible without concern for the validity of those arrests. The respondent's agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convince at the expense of others. As a result of the above described policies and customs, police officers of the City of New York, including the respondent officers, believed that their actions would not be properly monitored by supervisors and that misconduct would not be investigated or sanctioned, but would be tolerated. The above described policies and customs demonstrated a deliberate indifference on the part of policy makers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of Plaintiff's rights alleged herein. **KEVIN CAMPBELL** was injured by reason of the negligence, recklessness, careless, and malicious prosecution perpetrated by each and every one of the respondents involved individually and jointly, their agents, servants employees and/or licensees in the control, supervision, hiring and training of the officers and employees who were deliberately indifferent to Mr. Campbell's civil rights.

25. Throughout this period, Plaintiff **KEVIN CAMPBELL** was assaulted, run over, wrongfully, unlawfully and unjustifiably held under arrest, deprived of his liberty, imprisoned, and falsely charged.

26. Defendants, their officers, agents, servant and/or employees were responsible for Plaintiff **KEVIN CAMPBELL** assault, false arrest, detention and imprisonment during this period of time.

27. Throughout Plaintiff **KEVIN CAMPBELL** imprisonment, Defendants, and their officers, agents, servants, and employees refused to give Plaintiff an opportunity to establish his innocence.

28. Defendants intended to and did in fact confine Plaintiff **KEVIN CAMPBELL** and physically prevented him from leaving their custody and kept him under the supervision without access to his freedom, family and home.

29. Plaintiff **KEVIN CAMPBELL** was conscious of his unlawful arrest, detention and imprisonment and did not consent to the confinement.

30. At all relevant times, the assault, unlawful, wrongful and false arrest and imprisonment of Plaintiff **KEVIN CAMPBELL** was without right or privilege, and unjustified and without probable or reasonable cause.

31. At no time did Defendants or their officers, agents, servants, employees, agencies and/or departments have a warrant or other legal process for the arrest, detention or imprisonment of Plaintiff **KEVIN CAMPBELL**.

32. On or about the time of Plaintiff **KEVIN CAMPBELL**'s assault and unlawful arrest, criminal charges were brought against him and those same charges were later dismissed.

33. At all relevant times, the false, unlawful, and improper arrest and imprisonment of Plaintiff **KEVIN CAMPBELL** was forcible and against his will.

34. All of the foregoing occurred without fault or provocation on the part of Plaintiff **KEVIN CAMPBELL**.

35. As consequences of Defendants' wrongful actions, negligent behavior, and violation of New York State and common laws, Plaintiff **KEVIN CAMPBELL**:

- a. was deprived of his freedom;
- b. was incarcerated and suffered incarceration;
- c. was subjected to great fear, terror, personal humiliation, degradation, ridicule and disgrace;
- d. was subjected to great physical, injury and pain, mental, and emotional distress, suffering and harm;
- e. was discredited in the minds of many members of the community, having his personal reputation and character injured;
- f. was prevented from attending to his necessary affairs in business during the period of his detention;
- g. suffered physical and mental injuries that have impaired his earning ability;
- h. and continues to suffer pain and mental and emotional distress as a result of the aforesaid unlawful conduct of Defendants, their agents, employees, and servants.

36. Defendants acted with a knowing, willful, wanton, grossly reckless, unlawful, unreasonable, unconscionable and flagrant disregard of Plaintiff's rights, privileges, welfare and well-being, and were guilty of egregious and gross misconduct toward him.

37. By reason of the foregoing, Plaintiff **KEVIN CAMPBELL** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION FOR FAILURE TO INTERVENE
TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS AS AGAINST
ALL DEFENDANTS**

38. Plaintiff **KEVIN CAMPBELL** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

39. As a result of the above actions, Defendants **NYC**, individually, and/or vicariously, by and through its agents, servants and /or employees, and, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **KEVIN CAMPBELL** by Defendants **DETECTIVE SID CAESAR Shield #2062/ Tax Reg. #93239, P.O. JOHN DOE and P.O. JANE ROE**.

40. As a result of the foregoing, Defendants **NYC** individually and and/or vicariously by and through their agents servants, and/or employees, displayed a deliberate indifference to Plaintiff **KEVIN CAMPBELL** rights to be free from unreasonable searches and seizures and excessive use of force.

41. As a result of the foregoing, Defendants **NYC** individually and/or vicariously by and through its agents servants, and/or employees, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiffs rights and physical well being.

42. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION
FOR NEGLIGENT HIRING, TRAINING, RETENTION, AND SUPERVISION
AGAINST DEFENDANTS NYC**

43. Plaintiff **KEVIN CAMPBELL** repeats and re-alleges each and every allegation contained in the paragraph above with full force and effect as if each were more fully set forth herein.

44. That at the time of the aforementioned false arrest, false imprisonment, defamation, and violations of Plaintiff **KEVIN CAMPBELL'S** state and federal civil rights, all of the above-captioned Defendants were acting in the course and general scope of their employment duties and official duties pursuant to the authority given them by Defendant **CITY**.

45. Defendants **NYC**, at all relevant times herein should have known or had reason or opportunity to know, that the agents, servants and/or employees named as Defendants in this complaint were unfit for the employment for which they were hired, unfit for the official duties delegated to them and unfit for the law enforcement, investigatory, and prosecutorial responsibilities to which they were assigned.

46. That by hiring, retaining, employing, failing to supervise, failing to screen, failing to test, failing to evaluate, failing to monitor, failing to manage, failing to train and failing to investigate the aforementioned agents, servants and/or employees, Defendants **NYC** negligently created and caused a situation while it was likely that said agents, servants and/or employees would, as a result of their work history, unfit character, malicious temperament, criminal propensity, inadequate training, inadequate management and inadequate supervision, unlawfully arrest, unlawfully imprison, unlawfully deprive innocent persons such as Plaintiff **KEVIN CAMPBELL** of his Constitutional rights under the New York State Constitution, intentionally, wrongfully and unjustifiably arrested, detained and deprived such person of his liberty against his will, and imprisoned such person without sufficient reasons or probable cause appearing therefore.

47. Defendants **NYC** knew or should have known in the exercise of due and reasonable care that the aforementioned agents, servants and/or employees were malicious, vicious, potentially dangerous, and negligent and performing perjurious, criminal and illegal acts during the course of their employment duties.

48. Defendants **NYC** were negligent in the hiring, employment, training, retention, management, supervision, screening, testing, evaluating, monitoring, and investigating of the aforementioned agents, servants and/or employees.

49. That by reason of and in consequence of said negligence and lack of reasonable care on the part of defendants **NYC** and their agents, servants and/or employees, Plaintiff **KEVIN CAMPBELL** suffered the afore-stated injuries.

50. Prior to March 31, 2015, the City of New York developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of persons in New York, which caused the violation of Mr. Campbell's rights.

51. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen complaints of police misconduct, and acts of misconduct were instead tolerated by the City of New York.

52. It was the policy and/or custom of the City or New York to inadequately supervise and train its police officers, including the Defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The City did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.

53. As a result of the above described policies and customs, police officers of the City of New York, including the Defendant officers, believed that their actions would not be properly monitored by supervisory offers and that misconduct would not be investigated or sanctioned, but would be tolerated.

54. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of Plaintiff's rights alleged herein.

55. By reason of the foregoing, Plaintiff **KEVIN CAMPBELL** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS

56. Plaintiff **KEVIN CAMPBELL** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

57. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, full body strip searching, failing to investigate, failure to advise to law, rule and regulations known to them, failing to heed Plaintiff **KEVIN CAMPBELL** protestations, manhandling, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.

58. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff **KEVIN CAMPBELL** without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff.

59. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **KEVIN CAMPBELL** and injury to his name and reputation.

60. Said harm did in fact occur in this case, in that Plaintiff **KEVIN CAMPBELL** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff has had to seek support and counseling within the family.

61. By reason of the foregoing, Plaintiff **KEVIN CAMPBELL** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR AN FIFTH CAUSE OF ACTION
FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS

62. Plaintiff **KEVIN CAMPBELL** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

63. Defendants' acts were reckless, willful, wanton, malicious, oppressive, and outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff **KEVIN CAMPBELL** well being, and were based on a lack of concern and ill-will towards Plaintiff.

64. Plaintiff **KEVIN CAMPBELL** therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR AN SIXTH CAUSE OF ACTION
FOR EXCESSIVE USE OF FORCE
AGAINST ALL DEFENDANTS

65. Plaintiff **KEVIN CAMPBELL** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

66. Defendants **DETECTIVE SID CAESAR Shield #2062/ Tax Reg. #932396, P.O. JOHN DOE and P.O. JANE ROE** assaulted and battered **KEVIN CAMPBELL**.

67. Plaintiff **KEVIN CAMPBELL** did not physically resist or assault the defendants in any way, and the force used against him was unnecessary, unreasonable and excessive.

68. By reason of the foregoing, Plaintiff **KEVIN CAMPBELL** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS FOR FEDERAL CLAIMS

69. This is a civil litigation action seeking damages against defendants for committing acts under color of law, and depriving plaintiff of rights secured by the Constitution and laws of the United States. Defendants, while acting in their capacities as policemen of the City of New York, State of New York, deprived Plaintiff of his liberty without due process of law, thereby depriving Plaintiff of his rights, privileges and immunities as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. The Court has jurisdiction of this action under 42 U.S.C. § 1983, 28 U.S.C. § 1343, and 28 U.S.C. § 1331.

AS AND FOR MONELL CLAIMS AGAINST NYC

70. Plaintiff asserts a Monell Claim against the City of New York as prior to March 31, 2015, the City of New York, the New York Police Department developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which

caused the violation of Mr. Campbell's rights. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen's complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by the City of New York. It was the policy and/or custom of the City or New York to inadequately supervise and train its police officers, managers and employees including the respondent officers and ADA'S thereby failing to adequately discourage further constitutional violations, especially as they related to lying, on the part of their agents. Officers were encouraged and often harassed to make as many arrests as possible without concern for the validity of those arrests and often falsified claims and information on police reports and documents. The respondent's agencies did not require appropriate in-service training or retraining of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convenience at the expense of others. As a result of the above described policies and customs, police officers of the City of New York, including the respondent officers, believed that their actions would not be properly monitored by supervisors and that misconduct would not be investigated or sanctioned, but would be tolerated. The above described policies and customs demonstrated a deliberate indifference on the part of policy makers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of Claimant's right alleged herein. **KEVIN CAMPBELL** was injured by reason of the negligence, recklessness, careless, and malicious prosecution perpetrated by each and every one of the respondents involved individually and jointly, their agents, servants employees and/or licensees in the control, supervision, hiring and training of the officers and

employees who were deliberately indifferent to Mr. Campbell's civil rights and rights under his employment contract.

71. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of plaintiff's rights.

**AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR FALSE ARREST AND
MALICIOUS PROSECUTION AS AGAINST ALL DEFENDANTS IN VIOLATION OF
PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS**

72. Plaintiff **KEVIN CAMPBELL** repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

73. Plaintiff **KEVIN CAMPBELL** sues all Defendants in their capacities.

74. On or about March 31, 2015, at approximately 128th between Lenox Avenue and 7th Avenue while walking, Defendant **DETECTIVE SID CAESAR Shield #2062/ Tax Reg. #932396** drove his black unmarked car into Plaintiff's body. Plaintiff suffered from 2 broken bones in his forearm and a dislocated elbow. When Plaintiff told **DETECTIVE SID CAESAR Shield #2062/ Tax Reg. #932396** his arm was broken, **P.O. JANE ROE** hit him with her radio and knocked unconscious. Both hands were cuffed behind his back and then he was brought to the 25th precinct. Plaintiff waited for the ambulance for 3 hours before being brought to the hospital where he spent 3-4 hours. He was then brought downtown where he waited to see a judge. Plaintiff was in police custody for a total of about 72 hours. All charges were dismissed on December 15, 2016.

75. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant or probable cause.

76. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff **KEVIN CAMPBELL**.

AS AND FOR A SECOND CAUSE OF ACTION
FOR EXCESSIVE FORCE PURSUANT TO 1983

77. Plaintiff repeats and re-allege each and every allegation set forth above with the same force and effect as if set forth at length herein.

78. On or about March 31, 2015, Defendants **DETECTIVE SID CAESAR Shield #2062/ Tax Reg. #93239, P.O. JOHN DOE and P.O. JANE ROE** used excessive force in handling the Plaintiff.

79. Solely as a result of Defendants **DETECTIVE SID CAESAR Shield #2062/ Tax Reg. #93239, P.O. JOHN DOE and P.O. JANE ROE's** negligence, Plaintiff **KEVIN CAMPBELL** was caused to suffer severe and serious personal injuries to mind and body, further, that Plaintiff was subjected to great physical pain, mental anguish, embarrassment, extreme shock and nervousness.

80. The amount of force used to apprehend Plaintiff was unjustified.

81. By reason of the foregoing, Campbell's civil rights were violated.

82. Plaintiff **KEVIN CAMPBELL** was severely injured and damage which sustained her to suffer from severe nervous shock and mental anguish, great physical pain and emotionally damaged some of which injuries are believed to be permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; Plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; Plaintiff will be unable to pursue

her usual duties with the same degree of efficiency as prior to this accident, all to Plaintiff's great damage.

83. Due to Defendants **DETECTIVE SID CAESAR Shield #2062/ Tax Reg. #93239, P.O. JOHN DOE and P.O. JANE ROE's** negligence, Plaintiff **KEVIN CAMPBELL** is entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AND FOR A THIRD §1983 CAUSE OF ACTION FOR ASSAULT
IN VIOLATION OF HIS CONSTITUTIONAL RIGHTS**

84. Plaintiff **KEVIN CAMPBELL** repeats and re-alleges each and every allegation contained above as if fully set forth herein.

85. Defendants **DETECTIVE SID CAESAR Shield #2062/ Tax Reg. #93239, P.O. JOHN DOE and P.O. JANE ROE** caused Plaintiff to apprehend and/or fear unfriendly contact.

86. A reasonable person in the same circumstances as Plaintiff would have apprehended and/or feared unfriendly contact.

87. Defendants **DETECTIVE SID CAESAR Shield #2062/ Tax Reg. #93239, P.O. JOHN DOE and P.O. JANE ROE** assaulted Plaintiff in violation of his civil rights.

88. Due to the Defendants' assault, Plaintiff **KEVIN CAMPBELL** is entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A FOURTH §1983 CAUSE OF ACTION
FOR NEGLIGENT HIRING AND SUPERVISION**

89. Plaintiff repeats and re-iterates each and every allegation above as if set forth at length herein.

90. Prior to on or about March 31, 2015, Defendants **NYC, NYPD, and CITY OF NEW YORK** knew or should have known Defendants **DETECTIVE SID CAESAR Shield #2062/ Tax Reg. #93239, P.O. JOHN DOE and P.O. JANE ROE** be unruly and to verbally threaten and to harass other human beings.

91. That defendants **NYC, NYPD, and CITY OF NEW YORK** negligently hired and trained **DETECTIVE SID CAESAR Shield #2062/ Tax Reg. #93239, P.O. JOHN DOE and P.O. JANE ROE** negligently failed to supervise or discharge them from their employ, thereby causing and contributing to the above stated incident.

92. Plaintiff was caused to sustain serious injuries, caused to suffer pain, offense, shock and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries Plaintiff has been caused to incur, and will continue to incur expenses for medical care and attention; Plaintiff was and will continue to be rendered unable to perform his normal activities and duties having sustained a resultant loss there from.

AS AND FOR A FIFTH §1983 CAUSE OF ACTION
FOR EGREGIOUS CONDUCT

93. That as a result of the foregoing, Plaintiff was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

94. Plaintiff repeats and re-alleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

95. The acts of **NYC, NYPD, CITY OF NEW YORK and DETECTIVE SID CAESAR Shield #2062/ Tax Reg. #93239, P.O. JOHN DOE and P.O. JANE ROE** complained of herein were performed with malice and willful intent and are beyond the bounds of a

civilized society, especially here where Defendants knew they did not have just cause from the outset to arrest and detain Plaintiff.

96. Plaintiff was caused to sustain serious injuries and to suffer pain, shock, mental anguish, embarrassment, humiliation, anxiety and bodily injury.

97. That as a result of the foregoing, Plaintiff **KEVIN CAMPBELL** seeks punitive damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

98. Plaintiff **KEVIN CAMPBELL** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

99. As a result of the above actions, Defendants **NYC**, individually, and/or vicariously, by and through its agents, servants and /or employees, and **OFFICERS**, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **KEVIN CAMPBELL** by defendant **OFFICERS**.

100. As a result of the foregoing, Defendants **NYC** individually and and/or vicariously by and through their agents servants, and/or employees, and **OFFICERS**, displayed a deliberate indifference to Plaintiff **KEVIN CAMPBELL** rights to be free from unreasonable searches and seizures and excessive use of force.

101. As a result of the foregoing, Defendants **NYC** individually and/or vicariously by and through its agents servants, and/or employees, including **OFFICERS** acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiffs rights and physical well being.

102. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A SIXTH §1983 CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS

103. Plaintiff **KEVIN CAMPBELL** repeats and re-alleges each and every allegation contained in paragraphs above with full force and effect as if each were more fully set forth herein

104. The Defendants, and each of them, caused and intended to cause emotional distress.

105. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff **KEVIN CAMPBELL** without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff.

106. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **KEVIN CAMPBELL** and injury to his good name and reputation.

107. Said harm did in fact occur in this case, in that Plaintiff **KEVIN CAMPBELL** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff have had to seek support and counseling within the family.

108. By reason of the foregoing, Plaintiff **KEVIN CAMPBELL** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR AN SEVENTH §1983 CAUSE OF ACTION
FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS

109. Plaintiff **KEVIN CAMPBELL** repeats and re-alleges each and every allegation contained in paragraphs above with full force and effect as if each were more fully set forth herein.

110. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff well being, and were based on a lack of concern and ill-will towards Plaintiff.

111. Plaintiff **KEVIN CAMPBELL** therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants in each separate cause of action in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter; together with the costs and disbursements of this action.

Dated: Brooklyn, NY
October 11, 2017

RAWLINS LAW, PLLC



GARY N. RAWLINS

Attorney for Plaintiff

KEVIN CAMPBELL

777 Westchester Avenue, Suite #101

White Plains, NY 10604

Tel : (212) 926-0050

Fax (347) 332-1592

TO:

THE CITY OF NEW YORK LAW DEPARTMENT
100 Church Street
New York, NY 10007
Tel: (212)356-8752
Fax: (212)356-4360

Attn: Stephanie M. Revilla, Esq.

DETECTIVE SID CAESAR Shield #2062/ Tax Reg. #932396
Narcotic Bureau Manhattan North
Via 1 Police Plaza Path
New York, NY 10007

ATTORNEY'S VERIFICATION

Gary N. Rawlins, an attorney admitted to practice in the Courts of the State, and attorney for Plaintiff states:

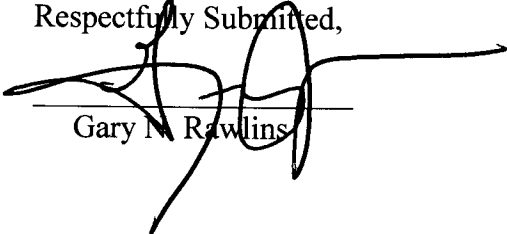
That your affirmant has read the foregoing instrument and knows the contents thereof; that the same is true to your affirmant's own knowledge except as to the matters which are stated therein to be alleged on information and belief, and as to those matters your affirmant believes them to be true. The source of your affirmant's information and belief is an investigation made with respect to the facts in this action.

That the reason this Verification is made by affirmant and not by the Plaintiff is because the Plaintiff does not reside within the county where I maintain my Office.

The undersigned affirms that the foregoing statement is true, under penalties of perjury.

Date: White Plains, NY
10 - 11, 2017

Respectfully Submitted,



Gary N. Rawlins

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.: 450355/2017
Date Purchased: 02/08/2017

-----X
KEVIN CAMPBELL,

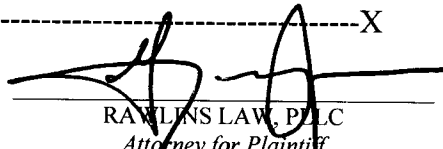
Plaintiff,

-against-

**AMENDED SUMMONS
and AMENDED
VERIFIED COMPLAINT**

THE CITY OF NEW YORK, DETECTIVE SID CAESAR
Shield #2062/ Tax Reg. #932396, P.O. JOHN DOE and P.O.
JANE ROE,

Defendants,

-----X

RAULINS LAW, PLLC
Attorney for Plaintiff
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White Plains, NY 10604
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F:(347) 332-1592

TO:

THE CITY OF NEW YORK LAW DEPARTMENT
100 Church Street
New York, NY 10007
Tel: (212)356-8752
Fax: (212)356-4360

Attn: Stephanie M. Revilla, Esq.

DETECTIVE SID CAESAR Shield #2062/ Tax Reg. #932396
Narcotic Bureau Manhattan North
Via 1 Police Plaza Path
New York, NY 10007

Service of a copy of the within is hereby admitted

Dated: _____

Attorney(s) for Defendant(s)

PLEASE TAKE NOTICE

☐ That the within is a (certified) true copy of a
Entered in the office of the clerk of the within named court on

NOTICE OF ENTRY

☐ That an Order of which the within is a true copy will be presented for settlement to the Hon. _____ one of the
judges of the within named Court.

NOTICE OF SETTLEMENT